



File No.: EXP202409927

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 4, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202100074, followed against KUR KLINIKUM, S.L. (hereinafter, the respondent).

In this file, it is recorded that the complainant exercised the right of access to the personal data concerning them, without said request being duly addressed, issuing a resolution requiring the following:

“FIRST: TO GRANT the complaint filed by A.A.A. and to urge KUR KLINIKUM, S.L., with NIF B61907002, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Access or to deny it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, which granted the respondent a period of ten working days to address the exercise of the right of access, was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated January 20, 2022, after being returned to sender by the postal service as unknown on January 14, 2022, as evidenced in the file, despite being sent to the tax address of the respondent provided by the State Agency for Tax Administration, which coincides with the registered office listed in the Commercial Register.

In accordance with Article 42.1 of the LPACAP, the notification of the resolution of the procedure for the exercise of rights was also made available to the interested party by electronic means through the single enabled electronic address.

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THIRD: After the period granted for the required actions in said resolution had elapsed and having received a letter from the complainant dated August 2, 2023, and registered under number REGAGE23e00052798923, a request was sent twice to the respondent to submit, within five working days, a certification of compliance with said resolution and, within ten working days, to notify this Agency of the measures adopted.

The two notifications of the aforementioned request were carried out in accordance with the rules established in the LPACAP by postal notification. The first was returned to sender by the postal service on September 20, 2023, due to being unclaimed (not picked up at the office after notices were left in the mailbox), and the second was returned to sender as unknown by the postal service on March 25, 2024, as recorded in the acknowledgments of receipt in the file, despite both being sent to the registered and tax address of the respondent.

FOURTH: After the period of the initial resolution and the subsequent requests had elapsed, the respondent has not sent any response to this Agency that certifies that they have attended to the exercised right of access or that they have denied it with justification indicating the reasons why the request cannot be attended to.

FIFTH: No ordinary administrative appeal can be filed against the aforementioned resolution due to the

expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SIXTH: On July 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

SEVENTH: The initiation agreement was notified to the respondent, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated August 8, 2024, after the attempt at postal notification at the registered and tax address of the respondent was unsuccessful, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party by electronic means through the single enabled electronic address.

EIGHTH: After the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when

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this contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that the defendant has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

NINTH: According to the report obtained from the AXESOR tool, the entity KUR KLINIKUM, S.L. is an SME, established in 1999 with a share capital of ***AMOUNT.1 euros, and with a business volume of ***AMOUNT.2 euros in 2013, the last financial year presented.

In view of all the actions taken, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the rights exercise procedure of file number EXP202100074 and the requirements for compliance with it indicated in the first, second, and third antecedents were notified in accordance with the provisions of the LPACAP. Said resolution became firm and executable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The defendant has not sent any response to this Agency that proves compliance with the resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In light of the facts presented, it is considered that the defendant has failed to comply with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the defendant, for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for exercising the rights of the data subject pursuant to this Regulation;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the defendant for the violation of Article 58.2 of the GDPR classified in the

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Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on KUR KLINIKUM, S.L., with NIF B61907002, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO ORDER KUR KLINIKUM, S.L., with NIF B61907002, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complainant a certification addressing the exercised right of access or to deny it with justification indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202100074. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to KUR KLINIKUM, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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